JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
Johnson Controls Fire Alarm System
VA West Haven New Chilled Water Plant
Solicitation No. W912WJ26RA008

1. Contracting Activity:

U.S. Army Corps of Engineers (USACE), New England District (NAE)
696 Virginia Road
Concord, MA 01742

2. Description of Action:

Approval is requested for use of brand name items in an upcoming acquisition.

This Justification and Approval (J&A) supports the use of brand name components in an upcoming firm fixed price construction project funded with procurement appropriations. The Government will not purchase the components directly but rather will require that offerors include the provision and installation of these brand name components as part of proposals submitted in response to a competitive solicitation that will lead to the award of a new construction contract. This J&A covers only the portion of the acquisition which is brand-name or particular to one manufacturer.

3. Description of Supplies/Services:

This project is a Department of Veteran Affairs (VA) requirement to construct a new Chilled Water Plant and provide site utility improvements for the VA Connecticut Healthcare System (VACHS) in West Haven, Connecticut. The requirement is to provide Johnson Controls, Inc. (JCI)/Simplex Fire Alarm System in the new Chilled Water Plant. The VA requires a consistent and fully integrated fire alarm system throughout the VACHS.

The cost to furnish and install the requested brand-name requirements for the JCI's Fire Alarm system is estimated at [redacted].

The solicitation for the construction contract for this project will be an unrestricted Best Value Trade-off solicitation, competed under Revolutionary FAR Overhaul (RFO) Part 15. The solicitation is expected to be awarded in Fiscal Year (FY) 2027 with construction completed in FY 2031, with a total estimated construction cost of [redacted].

4. Authority Cited:

10 United States Code (U.S.C.) 3204(a)(1) as implemented by RFO 6.103-1 - Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. In accordance with this authority, the solicitation will specify that all offerors be required to procure only the cited brand name product.

5. Reason for Authority Cited:

a. Background:

VACHS's primary mission is to provide advanced and patient-centric healthcare to veterans. Part of providing quality healthcare to veterans requires state-of-the-art infrastructure and systems to support that care. Replacement of the Chilled Water Plant with a JCI Fire Alarm system that can be integrated fully with the existing campus will ensure the facility and environment for all remains safe and efficient. The current VA West Haven campus utilizes a Simplex-Grinnell (now JCI) fire detection and alarm system. All buildings on the VA West Haven campus with a building fire detection and alarm system are network-connected and integrated into the campus-wide JCI system. The campus-wide system allows VA West Haven Police, facilities, and other safety personnel to remotely monitor, manage, access, and control fire alarm devices for each building on campus connected to the campus-wide system. The new fire alarm system for the new Chilled Water Plant (Building 17) will be compatible with the existing system. This will allow VA West Haven personnel to monitor this new system extension along with the remainder of the existing campus.

b. Justification

The JCI fire detection and alarm system at VACHS West Haven is a network of sensors, pull stations, notification appliances, and control panels providing the life-safety infrastructure required by the National Fire Protection Association (NFPA) and the Joint Commission. The existing campus system is built on the JCI/Simplex networked addressable fire alarm platform, which communicates over proprietary signaling and networking protocols developed and maintained exclusively by JCI/Simplex. These protocols are not published open standards and are not licensed to any other fire alarm manufacturer. No competing fire alarm manufacturer, including Notifier, Siemens, Edwards/EST, Gamewell-FCI, Mircom, or Silent Knight, produces a control panel, addressable device, or notification appliance that is UL-listed to communicate natively on, or be supervised by, the existing JCI/Simplex campus network.

This is a compliance issue, not a preference. NFPA 72 requires that all fire alarm system components be installed and maintained in accordance with the manufacturers' published instructions that are part of the product listing. UL 864 establishes that the manufacturer's installation document, which identifies the specific compatible devices for that control unit, is incorporated as part of the product listing. Together, these provisions mean that only devices and components documented as compatible in the JCI/Simplex manufacturer's installation instructions may be lawfully added to the existing campus system. There is no listed combination pairing a non-JCI device or control unit with the existing JCI/Simplex campus network. Introducing a different manufacturer's panel into the Chilled Water Plant and attempting to communicate with the existing campus network through a third-party gateway or relay-based translator is not a UL-listed life-safety arrangement, would not be accepted by the Authority Having Jurisdiction (AHJ), and would void the listing of the existing campus system.

Because the new Chilled Water Plant must be monitored, supervised, and controlled from the existing campus head-end location, and because no manufacturer other than JCI produces equipment listed to operate on that head-end's proprietary network, JCI is the only responsible

source whose product will satisfy the Government's requirement. This procurement will require the installation of various equipment, including but not limited to fire alarm control panel(s), pull stations, wall- or ceiling-mounted strobes, wall- or ceiling-mounted speakers, wall- or ceiling-mounted combination speaker/strobes, monitor modules, control modules, duct smoke detectors with duct housing, sampling tube, and remote test stations, smoke detectors, and heat detectors. Device quantities may change as the design develops and part numbers are not included as they have yet to be determined and may change based on delegated design submittals. These devices are proprietary in nature and must be programmed and tested by a JCI-authorized technician.

For the reasons stated above, RFO 6.103-1 is the appropriate authority for this procurement as only JCI Fire Alarm system will meet the Government's requirements.

c. Alternatives:

Because life-safety and UL-listing constraints prohibit integrating non-JCI equipment into the campus network (as detailed above), the Government has only one potential alternative to this sole-source procurement which is not viable.

The alternative is a complete replacement of the existing fire alarm infrastructure across the entire VA campus to achieve a unified network under a different manufacturer or open protocol type system. Due to the massive scale of the existing JCI/Simplex campus system, a full system replacement is prohibitive as part of this project as it is not included in the scope or budget. This would also cause severe, unacceptable operational disruptions to VA facilities and patient care, and as such needs to be completed through a phased approach, again not part of this project.

d. Impact:

If the J&A is not approved, then the fire detection and alarm systems for the new Chilled Water Plant may be sourced through a different vendor other than JCI, whereby making the new system for the Chilled Water Plant not compatible and not able to be integrated with the existing campus systems. Where building area adjacencies exist between the new system and the existing system, communications between the two systems must occur for proper building notification and controls. This communications interconnection would create complications and require involvement from multiple system manufacturers to accomplish, if it is even possible. This would also add complications to all future system modifications and create life-safety risks to occupants.

6. Efforts to Obtain Competition:

a. Effective Competition: For the reasons discussed above, brand name components are required and will be specified in an otherwise competitive solicitation for a construction project. The brand name components will include the fire detection and alarm system by JCI. Part numbers are not included as they have yet to be determined and they may change based on delegated design submittals.

A Notice of Intent (NOI) to sole source the brand name component that offerors will be required to procure was posted on February 4, 2026 to determine potential

sources for the system. The NOI was published for fifteen days on SAM.gov and received no responses.

b. Subcontracting Competition: Subcontracting opportunities for this system will be limited since the contractor or its specialty subcontractors are expected to order these products directly from JCI Fire Alarm Systems and coordinate delivery. However, it is expected that there will be other areas of work that will allow ample competitive subcontracting opportunities.

7. Actions to Increase Competition:

Based on the information provided in the above paragraphs, increasing competition for this action is not feasible. The brand name requirement for this system does not preclude a wide range of contractors from submitting a proposal on this procurement of an otherwise competitive construction project.

8. Market Research:

The market research for this procurement is predicated upon a foundational engineering assessment that has been validated against contemporary industry standards. Government personnel contacted the USACE Medical Center of Expertise Fire Protection Engineer in June 2026 related to the Surgical and Clinical Tower project. The Fire Protection Engineer consulted with another USACE Fire Protection Engineer who has experience with JCI/Simplex and stated that there is no alternative Fire Alarm manufacture that can provide reliable and campus-coordinated fire alarm signals for the campus.

In accordance with RFO Part 10, Government technical personnel evaluated current market capabilities to ascertain the continued validity of the aforementioned findings. This review confirmed that the conditions restricting competition remain substantively unaltered. The limitations identified are not subject to standard market fluctuations; rather, they constitute permanent, structural impediments dictated by exclusive intellectual property rights and stringent national life-safety regulations.

Specifically, since the initial 2023 engineering review, JCI/Simplex has neither open-sourced, published, nor licensed its proprietary communication protocols to any third-party entities. Furthermore, the rigorous compatibility mandates set forth by UL 864 and NFPA 72 remain in full effect, legally precluding the integration of non-listed, third-party components onto the established JCI network. As these constraints are rooted in immutable software architecture and statutory safety compliance, elements that do not degrade or shift over time, the original engineering determination retains validity and direct applicability to the current acquisition.

Finally, to ensure maximum transparency and to solicit prospective industry capabilities, a Notice of Intent (NOI) to Sole Source was formally published via the System for Award Management (SAM.gov).

9. Interested Sources:

A NOI to determine potential sources for this system was published on February 4, 2026, and closed February 19, 2026. No comments or responses were received. Once approved, this J&A will be published with the solicitation in accordance with RFO 6.301(b)(2).

10. Other Facts:

JCI Fire Detection and Alarm Systems meets RFO Buy American requirements.

11. Technical Certification

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: SIMONETTA.JOSEPH.DAVID.1249422424 Digitally signed by SIMONETTA.JOSEPH.DAVID.1249422424 Date: 2026.07.21 07:17:01 -04'00' Date: 7/21/2026

Typed Name: Joseph D. Simonetta Title: Technical Lead

12. Requirements Certification

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: FLANAGAN.JENNIFER.WAI.1228539747 Digitally signed by FLANAGAN.JENNIFER.WAI.1228539747 Date: 2026.07.30 12:07:54 -04'00' Date: 7/30/2026

Typed Name: Jennifer W. Flanagan Title: Project Manager

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. Reasonableness will be determined using price analysis techniques. Per RFO Part 15, a Certificate of Current Cost and Pricing Data may be obtained but may be waived depending on the level of competition for the contract.

Signature: Erin E. Bradley Digitally signed by BRADLEY.ERIN.ELIZABETH.1386908440 Date: 2026.07.30 12:42:31 -04'00' Date:

Typed Name: Erin E. Bradley Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature:  Date: _____

Typed Name: Erin E. Bradley Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of the Johnson Controls Fire Alarm System being procured with total dollar value of approximately [redacted] on an other than full and open competition basis pursuant to the authority of 10 United States Code (U.S.C.) 3204(a)(1) and RFO 6.103-1, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

Signature: Erin E. Bradley Digitally signed by BRADLEY.ERIN.ELIZABETH.1386908440 Date: 2026.07.30 12:43:06 -04'00'

Contracting Officer